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CASE NAME: National Right

to Work Legal Defense Foundation v. University of California at Los Angeles, et al.

CASE NO.: 25SMCV06023

MOTIONS: Motion for a Protective Order;

Motion

to Compel Further Responses (RPDs, SROGs); and

Motion

to Compel Deposition

HEARING DATE: 6/30/2026

Legal Standard

In

the absence of contrary court order, a civil litigant's right to discovery is broad. "[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action . . . if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence." (CCP § 2017.010; see *Davies v. Superior Court*

(1984) 36 Cal.3d 291, 301.) Section 2017.020(a) vests the Court with authority to limit the scope of discovery if the burden, expense, or intrusiveness of the discovery sought "clearly outweighs the likelihood that the information sought

will lead to the discovery of admissible evidence.” Code of Civil Procedure (“CCP”) § 2019.030 directs the Court to consider the needs of the case, amount in controversy, and the importance of the issues at stake in the litigation, and to consider whether the discovery being sought is unreasonably cumulative or duplicative, or is obtainable by a more convenient or less expensive or less burdensome way, when deciding whether to restrict the frequency of extent of use of an authorized discovery method.

Protective Orders

For good cause shown, the Court may enter a protective order to prevent unwarranted annoyances, embarrassment, oppression, undue burden, and expense in discovery. (*Fireman's Fund Ins. Co. v. Sup. Ct.* (1991) 233 Cal.App.3d 1138, 1141; CCP §§ 1987.1, 2017.020(a), 2025.420(b).)

Compel Further Discovery Responses

CCP section 2030.220(a) requires that “[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits.” Pursuant to CCP section 2030.300, a party may move to compel further responses to a form interrogatory if the other party's answer is “evasive or incomplete.” The responding party has the burden of justifying any objections. (*Coy v. Superior Court* (1962) 58 Cal.2d 210, 220-221.)

A motion to compel further responses to a demand for inspection or production of documents may be brought based on: (1) incomplete statements of compliance; (2) inadequate, evasive or incomplete claims of inability to comply; or (3) unmerited or overly generalized objections. (CCP, § 2031.310(c).) A motion for order compelling further responses “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (CCP § 2031.310(b)(1).) Absent a claim of privilege or attorney work product, the moving party meets its burden of showing good cause by a fact-specific showing of relevance. (See *Kirkland v. Superior Court* (2002) 95 Cal.App.4th 92, 98.) If the moving party has shown good cause for the RPDs, the burden is on the objecting party to justify the objections. (*Ibid.*)

Notice

of the motion must be provided within 45 days of service of the response, or any supplemental response, or on or before any specific later date to which the parties have agreed. (CCP § 2031.310(c).) This 45-day deadline runs from the date the verified response is served, and is extended for service by mail in accordance with C.C.P. Sections 1010.6(a)(4) and 1013(a). (Ibid.) This is a jurisdictional requirement. (Vidal Sassoon, Inc. v. Superior Court (1983) 147 Cal.App.3d 681, 685.)

The moving party must demonstrate a “reasonable and good faith attempt” at an informal resolution of each issue presented. (CCP §§ 2016.040, 2031.310(b)(2).)

Motions to compel

further responses must always be accompanied by a separate statement containing the requests and the responses, verbatim, as well as reasons why a further response is warranted. (CRC, Rule 3.1345(a).)

Compel Deposition Attendance

Service of a proper

deposition notice obligates a party or “party-affiliated” witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. (CCP § 2025.280(a).) If, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under CCP § 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (CCP § 2025.450(a).) The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (CCP § 2025.450(b)(2).) If the deposition notice included a request for production of documents, the motion to compel attendance must also show good cause to justify the production. (CCP § 2025.450(b)(1).)

The motion to compel must be

“made no later than 60 days after the completion of the record of the deposition.” (CCP § 2025.480(b).) This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena.

The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192.)

The California Public Records Act

Pursuant

to Government Code section 7921, et seq., citizens have a right to access government records. In enacting the California Public Records Act ("CPRA"), the Legislature declared that "access to information concerning the conduct of the people's business is a fundamental and necessary right of every person in this state." (Gov. Code § 7921.000; see also *County of Los Angeles v. Superior Court* (2012) 211 Cal.App.4th 57, 63.) Article 1, Section 3(b) of the Constitution affirms that "[t]he people have the right of access to information concerning the conduct of the people's business." The Constitution mandates that the CPRA be "broadly construed," while any statute "that limits the right of access" must be "narrowly construed." (*Nat'l Lawyers Guild v. City of Hayward* (2020) 9 Cal.5th 488, 507.) To establish an agency has a duty to disclose under the CPRA, the petitioner must show that: (1) the record qualifies as a public record; and (2) the record is in the possession of the agency. (*Anderson-Barker v. Sup. Ct.* (2019) 31 Cal.App.5th 528, 538.) An agency has constructive possession of records if it has the right to control the records, i.e. the power or authority to manage, direct, or oversee the records, either directly or through another person. (*Id.* at 538-540.) The agency must enumerate or describe the records discovered, identify exemptions applying to any enumerated or described records, and disclose the remaining records. (*Haynie v. Superior Court* (2001) 26 Cal.4th 1061, 1072; see *ACLU of Northern Cal. v. Sup. Ct.* (2011) 202 Cal.App.4th 55, 83 ["Because the agency has full knowledge of the contents of the withheld records and the requester has only the agency's affidavits and descriptions of the documents, its affidavits must be specific enough to give the requester 'a meaningful opportunity to contest' the withholding of the documents."].) The agency bears the burden of showing that a specific exemption applies, and such exemptions are narrowly construed. (*Sacramento County Employees' Retirement System v. Sup. Ct.* (2013) 195 Cal.App.4th 440, 453.)

Discovery in CPRA

The Civil Discovery

Act applies to CPRA proceedings, which fall within the definition of a “special proceeding of a civil nature.” (City of Los Angeles v. Sup. Ct. (2017) 9 Cal.App.5th 272, 284-288.) Nonetheless, the right to discovery “remains subject to the trial court’s authority to manage and limit discovery as required.” (Id. at 288.) The Court of Appeal explained:

[T]he CPRA is

intended to “permit the expeditious determination” of a narrow issue: whether a public agency has an obligation to disclose the records that the petitioner has requested. [Citations.] Although many CPRA cases are likely to involve questions of law based on undisputed facts (including, for example, whether a particular type of record is subject to a disclosure exemption), other cases will require the court to make factual findings based on conflicting evidence. In some such cases, discovery may be necessary to test the agency’s assertion that it does not have an obligation to disclose the records at issue.

[Citation.] When a party does seek to compel discovery (or seeks a protective order from a discovery request), the trial court must determine whether the discovery sought is necessary to resolve whether the agency has a duty to disclose, and to additionally consider whether the request is justified given the need for an expeditious resolution.

(Id. at 289.)

The

Court of Appeal has reiterated that pretrial discovery in a CPRA action is limited to the “narrow issue of whether the agency has a duty of disclosure” and that the trial court has discretion to determine whether discovery furthers that purpose. (County of San Benito v. Superior Court (2023) 96 Cal.App.5th 243, 255.) The Court also limited the right to discovery in multiple respects. First, a petitioner may not serve requests for production “of the very documents sought by the underlying public records request.” (Ibid.) Second, a petitioner may not serve interrogatories “calling for the [respondent] to generate new substantive content that is beyond the scope of discovery relevant to the merits of a Public Records Act enforcement proceeding as a means to collect information that is not subject to disclosure under the Act.” (Ibid.) For example, questions concerning the substance of documents, rather than the process for searching for those documents, would exceed the scope of pretrial discovery in a CPRA action. (Id., at 265.) Information concerning an agency’s “reasons for taking a certain action” in an underlying investigation is irrelevant to the CPRA and does not relate to whether a search

process was reasonable. (Id., at 267.)

"When

assessing motions to compel discovery (or motions seeking a protective order) in CPRA proceedings, the trial court has discretion to consider whether the petitioner has made an adequate showing that the discovery is likely to aid in the resolution of the particular issues presented in the proceeding." (City of Los Angeles v. Superior Court (2017) 9 Cal.App.5th 272, 290.) Under persuasive federal authorities, "when the government has provided a detailed factual basis in support of its decision to withhold documents (generally through affidavits), discovery is warranted only if the plaintiff 'make[s] a [sufficient] showing of bad faith,' or is able to provide 'tangible evidence' that the records have been improperly withheld." (Id., citing Wood v. F.B.I. (2d Cir. 2005) 432 F.3d 78, 85; Wheeler v. C.I.A. (D.D.C. 2003) 271 F.Supp.2d 132, 141.) Thus, discovery "may be appropriate when the plaintiff can raise sufficient question as to the agency's good faith in processing or in its search [citation], it is improper when sought for the bare hope of falling upon something that might impugn the agency's evidence." (Id., quotations omitted.)

Analysis

The

instant hearing regards three separate discovery motions.

Plaintiff

National Right to Work Legal Defense Foundation, Inc. moves for an order compelling Defendants University of California, Los Angeles, and The Regents of the University of California to provide further responses to Plaintiff's First Set of Requests for Production of Documents ("RPD") nos. 1, 2, 3, 5, 6, 10, 11, 15, 16, 23, and 25, and Special Interrogatories ("SROG") nos. 1, 3, 5, 6, 7, 8, 16, and 18.

Second, Defendants move for a protective order providing relief from Plaintiff's discovery requests under CCP sections 2023.090(a) and 2031.060(a).

Finally,

Plaintiff also moves to compel the deposition of Rachel Pounds, a Senior Public Records Analyst for Defendant UCLA.

Compel Furthers and Protective Order

The

Court tentatively grants the motions to compel further responses to RPD nos. 1, 2, 3, 5 and 25, and SROG nos. 1, 5, 6, 7, 8 and 16, as they are reasonably calculated to lead to the discovery of admissible evidence concerning the limited issues presented in this CPRA action.

A

central dispute of this action is whether Defendants performed an adequate search of their records. The Complaint alleges that Defendants are illegally withholding public records past statutory deadlines, without justification or citing an exemption. (Compl., ¶¶ 1-2.) The CPRA requests records relating to Defendants' 2024 Private Equity Research Strategy Conference and Defendants' 2018-2024 Strategic Labor Research Conferences. (Compl., Exs. 1-2.) More specifically, the requests sought all documents presented, distributed, or used at the conference itself and any recordings of the presentation; as well as any draft materials, any communication relating to the materials or the conferences, and any lists of presenters or participants. (Compl., ¶¶ 8-9.) Defendants agreed to produce documents. (Compl., ¶¶ 11-12, 14.) Eventually, Defendants produced some documents, but the production consisted almost entirely of publicly available municipal financial reports as well as scattered travel itineraries, a handful of generic policies concerning honoraria, and a short video taken at a conference. (Compl., ¶ 16.) The documents appear unrelated to the conference presentations, research materials, attendance lists, expense reports, or communications, and Defendants proffered no explanation why such published municipal materials were somehow responsive. (Id.) The production suggests that there is a cache of existing and withheld responsive documents. (Compl., ¶ 17.) Plaintiff alleges that Defendants' purported "review" process is pretextual and conducted in bad faith. (Compl., ¶ 18.)

Agencies

are generally obliged to disclose records they can locate "with reasonable effort." (City of San Jose v. Superior Court (2017) 2 Cal.5th 608, 627.) "Reasonable efforts do not require that agencies undertake extraordinarily extensive or intrusive searches, however." (Ibid.) In general, the scope of an agency's search for public records "need only be reasonably calculated to locate responsive documents." (Ibid.) Courts have permitted discovery assessing the reasonableness of the agency's efforts to collect documents in response to a

public records request. (San Benito, supra, 96 Cal.App.5th at 265-266.) “This information could include the identity of the individuals participating in the investigation, the time period during which the investigation was completed, and the means by which the participants communicated with each other. Such information could go to the reasonableness of the custodians the public entity identified, the repositories searched, and the temporal scope of the search.” (Id. at 265.)

The

Court will not require Plaintiff to demonstrate Defendants’ bad faith, or evidence that Defendants have improperly withheld documents. While City of Los Angeles, supra, 9 Cal.App.5th at 290, suggests that the court may require a plaintiff demonstrate an agency’s bad faith or other evidence that records are improperly withheld before discovery, more recent case law suggests that discovery into the scope of a search is generally permissible. (San Benito, supra, 96 Cal.App.5th at 265-266.) Also, Defendants are not necessarily withholding documents in bad faith. Rather, the main issue is whether Defendants conducted a reasonable search. Information on those search efforts is directly relevant this central issue. Under such circumstances, Plaintiff does not need to present affirmative evidence of bad faith or improper withholding.

RPDs

Responses

to RPD nos. 1, 2, 3, 5 and 25 will establish the reasonableness of Defendants’ search efforts. RPD no. 1 asks for documents evidencing the searches conducted in response to Plaintiff’s requests. RPD no. 2 requests documents reflecting the review, approval, or decision-making process relating to the production of records. RPD no. 3 asks for documents upon which Defendants rely to support their contentions in affirmative defenses to the Complaint that they fully complied with the CPRA. RPD no. 5 asks for documents exchanged with or maintained by any third party or vendor relating to the search for, production of, or withholding of responsive records. RPD no. 25 asks for Defendants’ retention policy. (See San Benito, supra, at 258 [approving discovery seeking information about county’s record-retention policies].) These documents requests will illuminate whether Defendants undertook search efforts that were reasonably calculated to locate any responsive documents, and whether Defendants have retained responsive, but unproduced, documents.

RPD

nos. 6, 10, 11, 15 and 16 go beyond the narrow issues presented in a CPRA action. RPD no. 6 seeks documents regarding the “creation and distribution” of the litigation hold, which would not show whether Defendants has a duty of disclosure. RPD no. 10 and 15 pertain to communications which relate to CPRA requests received from Cogency. Cogency's request is not at issue, and will not demonstrate whether Defendants have a duty of disclosure to Plaintiff's subject request. RPD no. 11 and 16 are overbroad, as they request any communications which relate at all to Plaintiff's request, which goes well beyond documents which will help resolve whether Defendants conducted a reasonable search or whether Defendants have a duty of disclosure. Therefore, the burden, expense and intrusiveness of responding to such requests outweigh the likelihood that the information sought will lead to the discovery of admissible evidence.

SROGs

Similarly,

SROG nos. 1, 5, 6, 7, 8 and 16 will also establish the reasonableness of Defendants' search efforts. SROG no. 1 seeks the identity of the persons with personal knowledge of the facts stated in Defendants' answer. SROG no. 5 asks for Defendants to describe the process used to respond to Plaintiff's requests, including “each step taken from receipt of the request through final production or withholding of records”; “(a) intake and initial review procedures; (b) identification of custodians, departments, and data sources searched; (c) search methodologies employed; (d) internal review, approval, and decision-making steps; and (e) final production or withholding determinations” and identification of all documents that “evidence this process” and all persons who “participated in or had responsibility for any portion of the process.” SROG no. 7 seeks details on the search terms, queries, or parameters used for the search. SROG no. 8 seeks any steps taken to verify and validate that the searches conducted. SROG no. 16 seeks information on all steps taken to identify and obtain responsive records from third parties.

SROG

no. 6 asks for identification of each person Defendants requested or suggested to participate in or to assist or consult in searching, which pertains to Defendants' search parameters. SROG no. 6, however, is overbroad since it seeks information on individuals Defendants “requested” or “suggested” to participate in the search, rather than those people that actually assisted in the search.

The Court limits SROG no. 6 to individuals that assisted in the search. SROG nos. 3 and 18 are overbroad and will not

aid in resolving the narrow issues of whether the agency has a duty of disclosure, including whether Defendants conducting reasonable search efforts. SROG no. 3 seeks the identity of played any role in responding to Cogency's and/or Plaintiff's requests. Seeking information on Cogency's request is overbroad, since information on that request will not aid determining whether Defendants complied with Plaintiff's request. SROG no. 18 seeks information on distribution of and compliance with Plaintiff's litigation hold. Information concerning Defendants' compliance with a purported litigation hold does not relate to the CPRA request or the reasonable search efforts for said request. Therefore, the burden, expense and intrusiveness of responding to such interrogatories outweigh the likelihood that the information sought will lead to the discovery of admissible evidence.

Defendants

otherwise do not attempt to substantiate their other objections, such as objections based upon the attorney-client privilege.

Additionally,

the Court will issue a protective order limiting discovery as to the topics in the denied RPDs and SROGs as discussed above. Defendants are ordered to prepare a proposed protective order consistent with this ruling, meet and confer with Plaintiffs, and then submit the order within 10 days.

Accordingly,

the motion to compel further responses is GRANTED as to RPD nos. 1, 2, 3, 5 and 25, and SROG nos. 1, 5, 6 (as modified), 7, 8 and 16, and DENIED as to the remainder. Further responses are ordered within 30 days.

Deposition

Plaintiffs

demonstrate proper service of the deposition notice on the party affiliated witness, Ms. Pounds. (Oster Decl., ¶ 2.) Defendants did not properly object to the deposition notice, or otherwise move to quash the notice. However, the Court agrees that some of Defendants' arguments in support of their requested protective order would equally apply to any depositions conducted in this action. As discussed, relevant deposition topics would concern Defendants' response to Plaintiff's CPRA requests, including Defendants' preservation activities, search efforts, and the factual basis for Defendants' assertion that their production

was complete. The deposition must not delve into manifestly irrelevant topics, such as Cogency's request(s) or Plaintiff's litigation hold.

Accordingly,
the motion to compel deposition is GRANTED.

Sanctions

Sanctions are generally mandatory against any party that unsuccessfully makes or opposes a motion to compel a further response, "unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (See, e.g., CCP, § 2030.300(d).)

Plaintiff failed
to notice or substantiate their request for monetary sanctions.

Defendants were also substantially justified in their objections. Some of the RPDs and SROGs went beyond the appropriate scope of discovery. Additionally, there is persuasive federal caselaw justifying denial of discovery absent Plaintiff's showing of bad faith or other tangible evidence that records have been improperly withheld. (City of Los Angeles, *supra*, 9 Cal.App.5th at 292.) Defendants were also substantially justified in their opposition to the deposition, since the proper scope of the topics at deposition was not certain.

Accordingly, the Court
declines to impose sanctions.